

VCU330278 Dowling, Nicole vs. Leyva, MaryCruz

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-08-25

Motion: Demurrer

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Re: Dowling, Nicole vs. Leyva, MaryCruz

Case No.: VCU330278

Date: August 25, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Demurrer

Tentative Ruling: To sustain the demurrer with leave to amend; Plaintiff shall have ten (10) days from the date of this hearing to file an amended complaint.

Facts

On May 12, 2026, this Court sustained a demurrer to the complaint for intentional and negligent interference with prospective economic advantage with leave to amend.

On May 21, 2026, Plaintiff filed an amended complaint for intentional interference with prospective economic advantage. In support, Plaintiff alleges:

"7. Plaintiff maintained existing and ongoing prospective economic relationships and opportunities, including existing online business operations, professional engagements, anticipated contracts, business-development opportunities, and ongoing income-generating activities requiring stable housing, uninterrupted access to personal property, communications, work materials, and operational continuity.

8. Plaintiff also maintained prospective economic relationships and opportunities involving existing and prospective customers, suppliers, vendors, service providers, commercial landlords, distributors, contractors, business contacts, and other identifiable third parties reasonably expected to participate in or contribute to Plaintiff's planned business expansion activities.

9. Beginning on or about 2022 and continuing through 2025, Plaintiff developed a business-expansion plan in the wellness, recovery, and lifestyle sector intended to build upon Plaintiff's existing online business operations, digital-marketing experience, social-media presence, and travel-and-hospitality content creation.

...

14. Defendant became aware of Plaintiff's intended business expansion, relocation plans outside Defendant's county, supplier and sourcing research, branding concepts, and efforts to establish independent economic activity through direct discussions concerning the intended wellness-business expansion, contemplated physical business location, product-branding concepts, supplier communications, relocation planning, and integration of Plaintiff's existing online audience and digital-marketing activities into a future commercial operation.

15. After becoming aware of Plaintiff's expansion efforts and intended economic independence, Defendant engaged in a pattern of conduct intended to discourage, obstruct, delay, or prevent Plaintiff's pursuit of those opportunities, including dismissing the viability of Plaintiff's proposed business model, repeatedly urging Plaintiff to abandon entrepreneurial pursuits in favor of alternative occupations, creating housing instability, interfering with Plaintiff's access to property and work materials, and engaging in communications that interfered with Plaintiff's pursuit of independent business-development activities.

16. Prior to the wellness-business expansion described herein, Plaintiff had independently pursued cosmetology and special-effects makeup opportunities, including attending orientation activities, taking preliminary enrollment steps, and researching financial-aid opportunities.

17. Plaintiff is informed and believes, and thereon alleges, that Defendant repeatedly discouraged Plaintiff from pursuing those opportunities and instead pressured Plaintiff toward vocational and educational paths Defendant preferred, thereby interfering with Plaintiff's independent vocational development and economic autonomy.

18. Defendant's conduct included repeated housing destabilization, repeated displacement, interference with Plaintiff's access to personal and professional property and work materials, disruption of Plaintiff's operational continuity, interference with Plaintiff's ability to maintain stable communications and business-development activity, and conduct that foreseeably disrupted Plaintiff's ability to pursue prospective commercial relationships and planned business expansion activities."

On July 23, 2026, Defendant filed this demurrer, arguing the cause of action for intentional interference is "is duplicative of the other cases; the unlawful detainer and related issues are res judicata, and the Complaint is missing the element of Defendant engaging in unlawful conduct."

Plaintiff appears to have filed a late opposition on August 14, 2026 which seeks to preserve objections regarding service of the first amended complaint, the expiration of the response period, the filing of a successive demurrer, and an objection to "cross-case aggregation."

Authority and Analysis

The purpose of a demurrer is to test whether a complaint "states facts sufficient to constitute a cause of action upon which relief may be based." (Young v. Gannon (2002) 97 Cal.App.4th 209, 220. To state a cause of action, a plaintiff must allege facts to support his or her claims, and it is improper and insufficient for a plaintiff to simply plead general conclusions. (Careau v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 11371, 1390.) The complaint must contain facts sufficient to establish every element of that cause of action, and thus a court should sustain the demurrer if "the defendants negate any essential element of a particular cause of action." (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879-80)

To determine whether the complaint states facts sufficient to constitute a cause of action, the trial court may consider all material facts pleaded in the complaint and those that arise by reasonable implication therefrom; it may not consider contentions, deductions, or conclusion of fact or law (*Moore v. Conliffe* (1994) 7 Cal.4th 634, 638.)

It is well-settled that all well-pled material facts in the complaint are assumed to be true for the purpose of the demurrer. (*C & H Foods v. Hartford Ins. Co.* (1984) 163 Cal.App.3d 1055, 1062) But "doubt in the complaint may be resolved against plaintiff and facts not alleged are presumed not to exist. (*Id.*)

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) No other extrinsic evidence can be considered (i.e., no "speaking demurrers"). (*Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.)

Interference with Economic Advantage

The elements of a claim for intentional interference with prospective economic advantage include: "(1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentional or negligent acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant." (*Crown Imports, LLC v. Superior Court* (2014) 223 Cal.App.4th 1395, 1404, citations, brackets, and quotation marks omitted.)

The third element of the tort of intentional interference with prospective economic advantage "also requires a plaintiff to plead intentional wrongful acts on the part of defendant designed to disrupt the relationship." (*Marsh v. Anesthesia Services Medical Group, Inc.* (2011) 200 Cal.App.4th 480, 504) "An act is independently wrongful if it is unlawful, that is, if it is proscribed by some constitutional, statutory, regulatory, common law, or other determinable legal standard, not merely the product of an improper, but lawful purpose or motive." (*Redfearn v. Trader Joe's Co.* (2018) 20 Cal.App.5th 989, 1006, internal citations and punctuations omitted.) "Such conduct must also be independently actionable, meaning the legal standards must provide for, or give rise to, a sanction or means of enforcement for a violation of the particular rule or standard that allegedly makes the defendant's conduct unlawful." (*Id.*, internal citations and punctuations omitted.)

Here, the Court lacks factual allegations as to what either intentional acts by Defendant disrupted the economic relationship between Plaintiff and unidentified third parties. There are no wrongful acts alleged. The pleading that "Defendant intentionally engaged in conduct designed to disrupt Plaintiff's prospective economic relationships and opportunities, including repeated housing destabilization, interference with Plaintiff's access to personal and professional property, repeated displacement, disruption of Plaintiff's business continuity, and conduct intended to impede Plaintiff's pursuit of economic independence and planned business expansion" is insufficient as it lacks allegations of the intentional, wrongful act by Defendant against Plaintiff. *Della Penna v. Toyota Motor Sales, U.S.A., Inc.* (1995) 11 Cal.4th 376, 393 requires the conduct to be "wrongful by some legal measure other than the fact of interference itself."

Further, Plaintiff does not allege the identity of a single customer, prospective customer, bid, contract, or other anticipated transaction capable of supporting a probability of future economic benefit. A mere speculative expectancy of future business, without an existing relationship with an identifiable third party, is insufficient. (*Roth v. Rhodes* (1994) 25 Cal.App.4th 530, 546-547.) Actual disruption of the economic relationship is a required element of the claim. (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1165.)

Therefore, the Court sustains the demurrer.

A demurrer cannot be sustained without leave to amend where it appears that the facts alleged establish a cause of action under any possible legal theory or it is reasonably possible that the plaintiff can amend the complaint to allege any cause of action. (*Canton Poultry & Deli, Inc v. Stockwell, Harris, Widom, and Woolverton* (2003) 109 Cal.App.4th 1219, 1226.)

Therefore, Plaintiff shall have ten (10) days to file an amended complaint.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.